

STANDING ORDER NO. 382/2009

Subject:- Procedure for Installation of Iron Gates for security purposes in residential colonies.

On the petitions filed by some Residents Welfare Associations in the High Court regarding norms for installation of Iron Gates on roads in their colonies, Hon'ble High Court of Delhi vide order dated 8.9.2005 directed the Commissioner, MCD to formulate either byelaws or guidelines in consultation with the Commissioner of Police pertaining to erection of gates on public roads etc. Suggestions were invited from all the concerned and thereafter revised guidelines were notified by the MCD which are enclosed as Appendix-A. As per MCD's guidelines, the RWA preparing to erect iron gates on roads will have to get NOC from the traffic police. In all such cases, NOC will be given by the DCP/Traffic range after obtaining reports of both the relevant ACP/Traffic and the ACP/Sub-Division. The ACP/Sub-Division will get the prior approval of the District DCP on file before making any recommendation regarding installation of gates etc. The guidelines of the MCD clearly specify that "in the event of any dispute regarding installation, opening/closing/manning of the gates, RWAs shall consult the ACP Sub-Division and his decision shall be final". The ACP I/C Sub-Division will take such a decision only after obtaining the approval of the District DCP on file. The compliance of following guidelines will be ensured by the District DCP/ACP I/C Sub-Division and Range Traffic DCP/ACP of the area:-

1. RWA will prepare the layout plan of the colony showing the provision of Iron Gates at the entry/exist points of the colony.
2. RWA will have to obtain no objection certificate (NOC) from Local Police and Traffic Police before applying to Dy. Commissioner of concerned MCD Zone.
3. RWAs shall comply with the following conditions which are mandatory and non - negotiable. NOCs will be given/withdrawn accordingly:-
 - a) The RWAs must be registered with the Registrar of Societies.
 - b) Gate may be installed in colonies where the right of way of the road does not exceed 18.3 metre. The gate may be provided only on the internal road of the colony which does not have buses plying on it.
 - c) The minimum width of the gate should be 5.0 metre and height of the gate should not be more than 3.0 metre. There should be no barrier/advertisement on top of the gate so that it is free from any horizontal/vertical obstruction. However, if a board is required to be put, it should not be at a height less than 5.0 metre from the ground level.

- d) Gates shall be allowed only at access roads of the colony/block/pocket. The gates inside the block, bye-lanes, back lanes and service lanes shall be allowed only on the specific recommendation of the Police and only if these lanes have opening to roads outside the colony.
- e) The Iron Gates should be properly located and designated to avoid blockage of arterial or sub-arterial roads by putting Gates.
- f) The Resident Welfare Associations shall ensure that there is total consensus among the residents on putting up a gate.
- g) In the event of any dispute regarding installation, opening/closing/manning of the gates, RWAs shall consult the Local Police of the area and the decision of ACP Sub Division shall be final.
- h) The Gates should not cause any unreasonable restrictions on right of way/thoroughfare passing through the Colony for access to other areas.
- i) Direction sign boards, layout plan of the colony indicating existence of gates on colony roads and the regulation time for entrance/exit from these gates should be erected at each gate to enable a person/vehicle approaching the colony to easily enter/exit the colony, particularly, the essential services like Water, Electricity, Telephones, Sewer, Fire Brigade etc. The informatory/directional boards should be painted with retro reflective paint/tape for better visibility.
- j) A proper lay out of the colony indicating the existence of gates and the regulation time of entrance/exit from these gates should be given to the MCD office along with the application. Similar plan should also be available with Local Police of the area and concerned Traffic Circle.
- k) The width of gate shall be such that emergency vehicles i.e. Fire Brigade, Police Vehicles, Ambulances and other vehicles can reach any part of the colony without any hindrance.
- l) The gates so installed **shall remain open at all time except from 11 PM to 5 AM.**
- m) During the time the gates are closed entry and exit facility shall be made available to the residents and for this purpose the gate shall be manned by Watch and Ward staff, who will be appointed by the RWAs at their own cost. No unmanned gate should be closed under any circumstances.
- n) Wherever gates have been provided, there shall be a provision of wicket gate for easy access for pedestrians.

- o) Number of gates to be put up shall be decided taking into consideration the geographical location, topography of the colony, nature of traffic and traffic circulation as a whole. Normally, gates should not be put on main roads/arterial roads but on side roads leading inside colony.
- p) The RWAs shall supply the details of Watch and Ward staff deployed by them at the gates or proposed to be deployed on a gate to be erected for which an NOC is being sought to the Local Police Station, Traffic Circle of the area and D.C.Zone.
- q) The Office bearers of the RWAs shall be fully responsible and accountable for non-functioning of the above arrangements in case of any emergency/mishap. Hence their name should be displayed on RWA notice board along with their addresses and contact numbers.
- r) No commercial advertising should be permitted on the gates except information about the colony.
- s) Gates shall be properly fixed and they should be structurally safe.
- t) The gates on roads connecting two or more colonies should not be closed.
- u) The gates should be considered essential from the security point of view.

4. Role of Delhi Police

a) Existing fencing/iron gates

It is felt that in respect of the existing fencing/gates in the colonies, the RWAs should be directed to seek permission in respect of such fencing/iron gates already raised from the MCD after the concurrence of the same has been obtained from the local police and the concerned traffic circle. NOC will be issued by the police only if all points mentioned in Para 3 (a-u) are complied with. After the approval of the same from the MCD, a copy of the lay out of the colony clearly indicating the fencing/iron gates and regulation times of the gates should be deposited with the local Fire Station, Police Station and the Traffic Circle office.

b) New fencing/iron gates

The local and traffic police will ensure that all points mentioned in Para 3(a-u) are fully complied with and the need for the gate justified before an NOC is issued. The final decision to issue a NOC will rest with the ACP/Sub-Division and ACP/Traffic. Permission to install gates be given after careful consideration and ensuring that there is consensus amongst the residents and no objection to the gate(s) being

installed. The Hon'ble High Court of Delhi in order dated 6.2.2004 has clearly stated that "It is directed that all the barriers and gates put up by any person in the entire colony of Saket, on public land shall be kept open. In the event any of the barriers or gate are sought to be closed at night, that barrier or gate must be manned permitting free egress and ingress to any body who wants to go through it".

5. The local police should ensure that all gates are erected in accordance with the guidelines laid down by the MCD after proper NOC obtained from the local police and traffic police. In case any gate is erected without the requisite permission/NOC or after erection the guidelines required to be fulfilled as per points in Para 3(a-u) are not complied with, the local police/traffic police must write to the MCD at DCP/DC MCD level to have the same demolished/removed. The local police/traffic police should also ensure that a gate does not remain closed except between 11 PM to 5 AM and that too only if attendants appointed by the RWA are in position to allow egress/ingress to anybody who wants to go through the same. The RWAs be advised that penal action could be taken for failure to comply with the guidelines for closer of gates in case a complaint is made to the police.

This Standing Order Supersedes the Previous Standing Order no. 382 issued vide No.16401-16550/RB/PHQ dt. 5-10-2009 and addendum No.7601-7700/HAR (PHQ) AC-I dt. 17-8-2010

All concerned must ensure strict compliance of this Standing Order.



(Yudhbir Singh Dadwal)
Commissioner of Police:
Delhi.

O.B. No. 103/RB/PHQ dated 05.10.09

No. 16401-550/Record Branch/PHQ dated, Delhi the 05.10.2009.

**MUNICIPAL CORPORATION OF DELHI
ENGINEERING DEPARTMENT**

D/664/SE (P) J

dated 25.06.07

**POLICY/GUIDELINES FOR INSTALATION OF GATES FOR
SECURITY PURPOSE IN COLONIES.**

CIRCULAR

As per provision of section 320 of DMC Act " No persons shall except with the permission of the Commissioner, MCD granted in this behalf erect or set up any wall, fence, rail post step, booth or other structure whether fixed or movable or whether of permanent or temporary nature, or any fixture in or upon any street or upon or over any open channel, drain well or tank" According Corporation vide resolution No 67 dated 25.04.04 approved guidelines for provision of limited entries at one or two pointes in the colony and copy of resolution was circulated vide E-in-C circular No. F. 506/E-in-C/2004/27 dated 21.06.2004 for necessary action/Compliance at Zonal level by all concerned.

Some Resident Welfare Association filed petitions in the High Court regarding dispute for installation of Iron gate on road in their colonies. Hon'ble High Court vide orders dated 08.09.05 directed Commissioner of MCD to formulate, either byelaws or guidelines pertaining to erection of gates on public roads etc. by inviting suggestions from Resident Welfare Associations and Commissioner of Police, further directed that no gates would be permitted to be erected on any road till revised guidelines are notified.

On the directions of Hon'ble Delhi High Court, suggestions from Resident Welfare Associations (RWA), general public & Police Department, were received. Accordingly revised policy has been approved by Commissioner, MCD for grant of permission of RWAs for installation of gates for security purpose in Colonies as per below mentioned guidelines:

Dy. Commissioner of MCD Zone concerned is authorized to give permission for erection of gates, subject to Resident Welfare Association adhere to following points :-

1. RWA will prepare the layout plan at the colony showing the provision of Iron Gates at limited entry another persons in the colony.
2. RWA will have to obtain no objection certificate (NOC) from Traffic Police Department of Delhi Police before applying to Dy. Commissioner of concerned MCD Zone.
3. RWA will have to full fill following points:-

1. The RWAs must be registered with the Registrar of Societies.
2. Gate should be installed in colonies where the right of way of road is upto 18.3 meter. The gates should be provided only if it is internal road of the colony and does not have buses plying on it.
3. The minimum width of the gate should be 5.0 meter and height of the gate should not be more than 3.0 meter. There should not be any barrier/advertisement on the top of gate so that the gate is free from any horizontal/vertical obstruction. However, if any board is needed, it should be more than 5.0 meter from the ground level.
4. Gates would be allowed only at main access point of the colony/block/pocket. The gates inside the block lanes/bye-lanes/back lanes, and service lanes shall be allowed only on the specific recommendation of local police and only if these lanes have their opening towards the roads outside the colony.
5. The Iron Gates should be property located and designed to avoid blockage of arterial or sub-arterial roads by putting Gates.
6. The Resident Welfare Associations shall ensure that there is consensus among the residents regarding putting up of any Gates so as to avoid dispute amongst incidents.
7. In the event of any dispute regarding installation opening/closing / manning of the gates, RWAs shall consult the ACP Sub Division and his decision shall be final.
8. The Gates should not cause unreasonable restrictions on right of way/ thoroughfare passing through the Colony for access to other areas.
9. Proper written directions and layout plan of the colony indicating existence of gates and the regulation time of entrance/exit from these gates should be available at each such gate enabling a person/vehicle approach the colony easily particularly, for essential services like Water, Electricity, Telephones, Sewer, Fire Brigade etc.
10. A proper lay out of the Colony indicating the existence of gates and the regulation time of entrance/exit from these gates should be given to the MCD Office along with the application.
11. The width of gate shall be such that emergency vehicles i.e. Fire Brigade, Police Vehicles, Ambulances and other emergency vehicles can reach any part of the Colony without any hindrance.
12. The gates so permitted, to be installed shall remain open during the daytime.
13. During the night after 11.00 p.m., gates may be closed upto 5.00 a.m. but entry and exit facility shall be made available to the residents and entry/exit shall be manned by the Watch and Ward to be appointed by the RWAs at their const.

14. Wherever gates have been provided there shall be a provision of wicket gate for easy access and entry for provision of wicket gate for easy access and entry for pedestrians.
15. Number of gates to be put up shall be decided depending upon the geographical location and topography of the colony nature of traffic and traffic circulation as a whole. The gates so installed shall be strictly regulated according to the timings fixed.
16. The RWAs shall supply the information about the details of the security persons deployed by them at the main and other gates to the local police station and DC Zone.
17. RWAs office bearers shall be fully responsible and accountable as per law on account of non-functioning of these gates in case of any emergency/mishap. Hence their name should be displayed on RWA notice board along with their addresses & contract numbers.
18. No funds will be provided by the M.C.D. out of its own budget or from discretionary funds of any area representative to RWAs for installation of gates in the colonies.
19. This revised policy shall be applicable to the existing gates also hence gates already installed by RWAs in the colony should be got regularized by MCD within the period of six months.
20. No Commercial advertising is permitted on the gates except information about the colony.
21. Gates shall be properly fixed and they should be structurally safe. In case of any accident/mishap, office bearers of RWAs shall be fully responsible and accountable as per law.
22. Sanction for installation of the Iron Gate will be accorded within 45 days from the date of receiving of proposal from the concerned RWAs.

Sd/-

Add. Commissioner (Engg.)

All Dy. Commissioners of Zones

Copy for information to :

1. Commissioner MCD
2. Commissioner of Police
3. Chief Fire Officer
4. CLO
5. D.C (IT) for Publication on MCD web site.

Sd/-

Add. Commissioner (Engg.)

ADDENDUM

Standing Order No.382 of 2009

Procedure for Installation of Iron Gates for Security purposes in Residential Colonies.

This is in continuation of Standing Order No.382 of 2009 regarding Procedure for Installation of Iron Gates for Security purposes in Residential Colonies. The sub para d) of para 3 of the standing order issued vide No. 16401-16550/Record Branch/PHQ/ dated Delhi 5-10-09 may be deleted and sub para (f) of para 3 may be substituted as under:-

(3) (f) :-

The RWA shall ensure that there is general consensus among the residents on putting up a gate. No gates shall be permitted if objected to by a resident if the gate is located in the reasonable proximity of the objectors residence or / and impacts his entry / exit to his residence or place of work.



**(Yudhbir Singh Dadwal)
Commissioner of Police
Delhi.**

O.B. No. 47/ Record Branch (PHQ) Dated: 17/8/2010

No. 7601-7700/HAR(PHQ)/AC-I/ dated, Delhi the, 17/8/2010